

****28.06.2024****

****Rights of Data Subjects – SIS/SINS (Schengen)****

In the context of Romania's recent partial accession to the Schengen area with maritime and air borders, we note that the Schengen area guarantees the free movement of over 400 million citizens of the European Union (EU), along with non-EU citizens residing in or visiting the EU as tourists, students, or for business purposes. The free movement of persons allows every EU citizen to travel, work, and reside in any EU country without fulfilling special formalities. Thus, citizens can move within the Schengen area without being subjected to border controls.

[https://www.dataprotection.ro/?page=SIS_II_Video_prezentare](https://www.dataprotection.ro/?page=SIS_II_Video_prezentare)

The Schengen Information System (SIS) is the information system established at the level of the European Union and used by member and associated states for cooperation through the exchange of data and information, in order to maintain public order and national security within their territories, as well as for managing the control of external Schengen borders and assisting in police and judicial cooperation.

We mention that, through Regulation (EU) 2018/1862 regarding the establishment, functioning, and use of the Schengen Information System (SIS) in the field of police cooperation and judicial cooperation in criminal matters, amending and repealing Decision 2007/533/JAI, through Regulation (EU) 2018/1861 regarding the establishment, functioning, and use of the Schengen Information System (SIS) in the field of border checks, and through Regulation (EU) 2018/1860 regarding the use of the Schengen Information System for the return of third-country nationals in an illegal stay situation, the technical architecture of SIS (the central system and national systems) is established, the obligation of member states to develop their own national SINS, as well as the conditions for processing personal data and the information used.

In this context, we specify that individuals whose personal data are processed in the Schengen Information System (SIS) or in the National Information System for Alerts (SINS) have the right to access data (the data subject has the right to know whether their data is recorded in SIS or not), the right to rectification (the data subject has the right to request the correction of inaccurate data in SIS), and the right to erasure (the data subject has the right to request the deletion of data, if permitted by law) of personal data.

For the national implementation of certain provisions contained in the aforementioned European Regulations, Law no. 76/2023 regarding the organization and functioning of the National Information System for Alerts and Romania's participation in the Schengen Information System, as well as for amending and completing the Government Emergency Ordinance no. 194/2002 regarding the regime of foreigners in Romania, has been adopted.

Article 61 of this normative act establishes that the processing of personal data carried out in SINS or in SIS is done in compliance with Regulation (EU) 2016/679 and Law no. 363/2018. Furthermore, Article 62 of Law no. 76/2023 describes the manner of exercising the aforementioned rights.

Thus, requests from data subjects (for exercising the rights of access, rectification, and erasure) in the context of processing personal data in SINS or in SIS are submitted to the Personal Data Protection Office, a structure within the General Inspectorate of the Romanian Police, with competencies in resolving these requests (cererischengen@politiaromana.ro).

At the same time, data subjects may also address requests for exercising the right of access, rectification, and erasure of personal data to any competent national authority (Romanian Police, Romanian Border Police, Romanian Gendarmerie, General Inspectorate for Immigration, General Directorate for the Registration of Persons, General Directorate of Passports, Ministry of Foreign Affairs), which redirects the request to the Personal Data Protection Office within the General Inspectorate of the Romanian Police within 5 working days from registration, informing the data subjects about this.

Data subjects are informed about the actions taken following these requests within a maximum of one month from their receipt. This period may be extended by two months when necessary, taking into account the complexity and number of requests.

We emphasize that the legality of processing personal data in N.SIS (the national component of SIS) on the territory of Romania and the transmission of this data abroad, as well as the exchange and further processing of additional information, are monitored and subject to the control of the National Authority for the Supervision of Personal Data Processing.

Thus, in the event that data subjects do not receive a response or are dissatisfied with the response received from the Personal Data Protection Office within the General Inspectorate of the Romanian Police, they may address the National Authority for the Supervision of Personal Data Processing.

For further information, you can also access the brochure dedicated to the Schengen Information System available on the website of the National Authority for the Supervision of Personal Data Processing, in the Schengen Section – Schengen Informative Materials.

[https://www.dataprotection.ro/?page=Materiale_informative_SIS_II](https://www.dataprotection.ro/?page=Materiale_informative_SIS_II)

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